

The Maharashtra State Board Of Nursing And Paramedical Education Act, 2013

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State of Maharashtra - Act

The Maharashtra State Board Of Nursing And Paramedical Education Act, 2013

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The Maharashtra State Board Of Nursing And Paramedical Education Act, 2013

Act 23 of 2013

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The Maharashtra State Board Of Nursing And Paramedical Education Act, 2013

(ACT No. 23 of 2013)

[21st August, 2013]

An Act to provide for the establishment of a State Board to regulate matters pertaining to the Diploma Level Nursing and Paramedical Education in the State of Maharashtra and for matters connected therewith or incidental thereto.

WHEREAS it is expedient to provide for the establishment of a State Board to regulate matters pertaining to Diploma Level Nursing and Paramedical Education in the State of Maharashtra and for matters connected therewith or incidental thereto; it is hereby enacted in the Sixty-fourth Year of the Republic of India as follows :--

1.

Short title, extent and commencement.-

(1)

This Act may be called the Maharashtra State Board of Nursing and Paramedical Education Act, 2013.

(2)

It extends to the whole of the State of Maharashtra.

(3)

This section shall come into force at once, and the remaining provisions of this Act shall come into force on such date as the State Government may, by notification in the Official Gazette, appoint.

2.

Definitions.-

In this Act, unless the context otherwise requires,-

(a)

"appointed day" means the date on which the remaining provisions other than section 1 of this Act come into force under sub-section (3) of section 1;

(b)

"Board" means the Board established under section 3;

(c)

"bye-laws" means the bye-laws made by the Board under section 46;

(d)

"college or school" means an institution imparting diploma or post-diploma or advanced diploma in hospital administration and management or nursing and Paramedical Education recognized by the Board under this Act;

(e)

"Diploma Level Education" means such nursing and Paramedical Education which follows Revised Auxiliary Nurse Midwifery, Revised General Nursing Midwifery and Post Certificate Diploma Courses, and Paramedical courses or Hospital Administration and Management or any other education specified by the Board excluding the degree courses and post graduate diplomas;

(f)

"Director" means the Director of the Board appointed under sub-section (1) of section 6;

(g)

"examination" means one or more examinations conducted by the Board;

(h)

"Government" means the Government of Maharashtra;

(i)

"Governing Council" means the Governing Council of the Board established under section 8;

(j)

"Head of Institution" or "Principal" means the head of the teaching staff of a nursing and paramedical diploma level institution or college or school, by whatever name designated;

(k)

"Paramedical Education" means any degree, diploma or certificate in any paramedical qualification by whatever name called, granted by any University established by or under any law for the time being in force or any other institution, college or school recognized by the Government;

(l)

"prescribed" means prescribed by regulations made under this Act;

(m)

"Region" means the area comprised in each of the three regions as specified in Schedule I appended to this Act;

(n)

"Registrar" means the Registrar of the Board;

(o)

"regulations" means the regulations made by the Government under section 45 and by the Board under section 44;

(p)

"Teacher" means a member of the nursing and paramedical teaching staff other than the Principal or the Head of Institution.

3.

Establishment of Board.-

The Government shall, by notification in the Official Gazette, establish for the purposes of this Act, a Board to be called "the Maharashtra State Board of Nursing and Paramedical Education".

4.

Incorporation of Board.-

The Board shall be a body corporate having perpetual succession and a common seal, and shall have power to contract, acquire, hold and dispose of property, both movable and immovable, and to do all things necessary for the purposes of this Act and may sue and be sued by its corporate name.

5.

Constitution of Board.-

(1)

The Board shall consist of--

(a)

the Director of the Board as a Chairman:

Provided that, till the appointment of the Director under section 6, the Director, Medical Education and Research, Maharashtra State shall hold the charge of the Chairman;

(b)

the State Nursing Superintendent as a Member;

(c)

the Registrar as a Member-Secretary; and

(d)

the Director, Board of Apprenticeship Training (Western Region), Government of India, Ministry of Human Resource Development;

(e)

the following members shall be nominated by the Government, namely:--

(A)

one Principal from the Government Nursing Colleges in the State;

(B)

two members from amongst the Principals and Head of Institutions, one from Government institution and another from the Municipal Corporation Institution and among these, at least one shall be a woman;

(C)

two members of whom one shall be from nursing Teachers and one from paramedical Teachers from the Government diploma colleges or schools under the Directorate of Medical Education and Research and Directorate of Health Services;

(D)

one representative of each Region who shall have minimum qualification of Post Graduation in the nursing or Paramedical Education field and minimum five years' experience in such field :

Provided that, a person shall cease to hold office as a member of the Board, if such person ceases to hold the post, designation or office, as the case may be, by virtue of which such person is so appointed, and such person shall inform the Chairman of the Board, in writing, of his having so ceased to be the member of the Board, within a week therefrom.

(2)

The names of the persons other than the ex officio members, who have been nominated, from time to time, as the members of the Board shall be published by the Government in the Official Gazette.

6.

Director of Board.-

(1)

The Board shall have a Director, who shall be appointed by the Government from amongst the persons qualified to be appointed as the Director of Medical Education of the Government and his name shall be published by the Government

in the Official Gazette.

(2)

The Director shall hold office for a term of five years from the date of the publication of his name in the Official Gazette.

(3)

Nothing in sub-section (2) shall affect the power of the Government to transfer, in the exigencies of public service, the Director to any other post under the Government during such term; and if the Director is superannuated in the service of the Government, he shall cease to be the Director, unless his services are extended or he is re-employed in the service of the Government and he is not transferred to some other post.

(4)

The Government may, from time to time, extend the term of office of the Director of the Board, so, however, that the aggregate period of the term shall not exceed ten years.

(5)

The Director shall be an employee of the Government, equivalent to the post of the Director of Medical Education of the Government and conditions of service and rules of recruitment of the Director shall remain same as that of the Director, Medical Education and Research.

(6)

Where a temporary vacancy of the Director occurs by reason of leave, illness or other cause, the Government may appoint another person holding equivalent post to be the Director.

7.

Term of office of and allowances to members of Board.-

(1)

The members of the Board other than the ex officio members, shall hold office for a term of five years from the date on which their names are published in the Official Gazette.

(2)

The term of office of the outgoing member shall extend to, and expire with, the day immediately preceding the date on which the names of their successors are published in the Official Gazette.

(3)

The members other than the ex officio members shall be entitled to such compensatory allowances as may be determined by the regulations.

8.

Establishment of Governing Council

(1)

The Government shall, by notification in the Official Gazette, establish the Governing Council which shall be an apex body to control and monitor the matters pertaining to Diploma Level Nursing and Paramedical Education and examination at the State level.

(2)

The Governing Council shall consist of the following, namely:--

President.

(ii) The Minister of State for Medical Education, State of Maharashtra,

Vice-President

(iii) The Secretary or Principal Secretary or Additional Chief Secretary, as the case may be, Medical Education and Drugs Department, Government of Maharashtra,

Member.

(iv) Joint Secretary or Deputy Secretary, Medical Education and Drugs Department, Government of Maharashtra,

Member.

(v) Director of Medical Education and Research,

Member.

(vi) Director of Health Services,

Member.

(vii) Director of Ayurved,

Member.

(viii) State Nursing Superintendent,
Member.

(ix) Principal, Government Occupational and Physiotherapy College, Nagpur,
Member.

(x) Director of the Board,
Member-Secretary.

9.

Disqualification of Chairman and members of Board.-

A person shall be disqualified for being appointed or nominated as, or for continuing as, the Chairman or a member of the Board or any Committee constituted under this Act,--

(a)

if he directly has any share or interest in any work done by order of, or in any contract entered into on behalf of, the Board;

(b)

if he is a person against whom an order for removal from office has been made under section 12:

Provided that, a person against whom such order is made, shall not be deemed to have been disqualified under this clause, if five years, or such lesser period as the Government may specify, has elapsed from the date of his removal from office.

10.

Casual vacancies.-

All casual vacancies in the office of the members of the Board, Governing Council or any Committee constituted by the Board shall be filled in as soon as may be, by nomination or appointment, as the case may be; and the person nominated or appointed in a casual vacancy shall hold office so long only as the member in whose place he is nominated or appointed would have held, if the vacancy had not occurred.

11.

Resignation of member.-

A member of the Board, except the ex officio member, may resign his office at any time by tendering his resignation in writing to the Chairman of the Board or the President of the Governing Council, as the case may be; and such member shall be deemed to have vacated his office as soon as the resignation is received and accepted by the Government.

12.

Removal of member.-

(1)

The Government may, on the recommendation of the Board, and after making such further inquiry as it may think fit, by order remove any member of the Board or any Committee thereof, if such member,-

(a)

has been convicted by a Court in India for any offence involving moral turpitude; or

(b)

is an un-discharged insolvent; or

(c)

has been declared as a person with disability and certified as being unable to discharge the functions of the Board or as the case may be, the Committee by such medical authority as the Government may specify; or

(d)

is of unsound mind and stands so declared by a competent Court; or

(e)

is acting in a way detrimental to the aims and objects of the Board:

Provided that, no such recommendation shall be made by the Board or no order shall be made under clause (e), unless he has been given a reasonable opportunity of showing cause why such recommendation or order should not be made.

(2)

The Government may, suo motu, by order remove any nominated member of the Board or any Committee thereof, whose activities are, in the opinion of the Government, detrimental to, or obstruct, the proper functioning of the Board or of any Committee thereof:

Provided that, no member shall be removed from office unless such member has been given a reasonable opportunity of showing cause why such order should not be made against him.

(3)

Notwithstanding anything contained in sub-sections (2) and (2), the nominated member of the Board shall hold office during the pleasure of the Government and may be removed at any time before the expiry of their term of office.

13.

Meetings of Board.-

(1)

The Board shall meet at least twice in every month.

(2)

The Chairman of the Board may at any time if the exigencies so demand, upon a written request made by not less than one-third of the total number of members of the Board, call a special meeting of the Board on a date not later than twenty-one days after receipt of such request by the Chairman.

14.

Vacancy of Chairman or member owing to disqualification.-

If the Chairman or member of the Board or any Committee thereof becomes subject to any of the disqualifications mentioned in section 9, his office shall thereupon be declared vacant by the Government.

15.

Vacancy of member owing to absence without permission.-

If a member appointed or nominated to the Board remains absent, without permission of the Board, for three consecutive meetings thereof, his office thereupon shall become vacant, and shall be so declared by the Chairman.

16.

Decision on question as to vacancy.-

In case of any dispute as to whether the office of the Chairman or a member has become vacant under section 14 or 15, the same shall be referred to the Government and the decision of the Government in the matter shall be final.

17.

Acts and proceedings not invalidated by vacancies or defects in constitution of Board or Committee.-

No act or proceedings of the Board or any Committee thereof shall be invalid merely by reason of any vacancy in, or any defect in the constitution of, such Board or Committee.

18.

Power to invite experts and officers at meetings.-

The Board may invite any person who in its opinion is an expert in the field of education or any officer of the Government to attend its meeting or of its Committees, if the subject with which the expert or officer is concerned is likely to come up for discussion or consideration at such meeting.

19.

Constitution of Committees.-

(1)

The Board shall constitute the following Committees, namely:--

(a)

Academic Committee;

(b)

Finance Committee;

(c)

Course Committees, not exceeding 20;

(d)

Equivalence Committee;

(e)

Special Committee.

(2)

The Board may constitute such other Committees as it thinks necessary for efficient performance of its functions.

(3)

The number of members of every Committee constituted by the Board, the term of office of its members and the duties and functions to be discharged by it shall be such as may be prescribed.

20.

Board to absorb certain staff and to assume obligations of Government in respect of matters to which this Act applies.-

(1)

The Board shall take over and employ such of the existing staff on the date of the establishment of Maharashtra Nursing Council, such as Registrar, Joint Registrar, Deputy Registrar and Assistant Registrar, Controller of Examinations, Systems Analysts, Finance Officers and Accounts Officers and serving for the purpose of the Maharashtra Nursing Council constituted under the Maharashtra Nurses Act, 1966 (Mah. XL of 1966) (hereinafter referred to as "the existing Council"), as the State Government may direct, and every person so taken over and employed shall be subject to the provisions of this Act and the regulations made thereunder:

Provided that, -

(a)

such staff gives option, within the prescribed time limit to continue in the services of the Board;

(b)

during the period of such employment, all the matters relating to the pay, leave, retirement, allowances, pension, provident fund and other conditions of services of the members of the said staff shall be regulated by the Maharashtra Civil Services Rules or such order as may, from time to time, be made by the Government;

(c)

any such employee shall have right of appeal to the Government against the order of rejection, dismissal or removal from service, fine or any other punishment.

(2)

Permanent employees of the existing Council if exercises option in favour of the Government Service, they shall be absorbed within a period of two years under the Directorate of Medical Education and Research in any of its offices or colleges or schools of nursing or Government Hospitals where vacancy exists under the Directorate of Medical Education and Research.

(3)

All expenditure which the existing Council may have incurred before the appointed day in connection with any of the purposes of the existing Council, which are the objects and purposes for which the Board is constituted, shall be deemed to be advanced towards capital expenditure by the Government to the Board on that date, and all assets acquired by such expenditure shall vest into the said Board.

(4)

All property, movable or immovable, and all rights, and interests of whatsoever kind, and powers and privileges of the existing Council necessary for the achievement of objects and purposes of the Board shall stand transferred and shall vest in the Board and be applied for the objects and purposes for which the Board is constituted.

(4)

All obligations incurred, all contracts entered into and all matters and things engaged to be done, before the first constitution of the Board by, with or for, the State Government or the existing Council for any of the purposes of this Act, in respect of any scheme for the promotion of the nursing and Paramedical Education in the State of Maharashtra shall be deemed to have been incurred, entered into, or engaged to be done by, with or for, the Board and accordingly, all claims made, or suits or legal proceedings instituted or which might have been instituted by or against the State Government or the existing Council, as the case may be, be continued or instituted by or against the Board.

21.

Appointment, powers and duties of Registrar, Joint Registrar, Deputy Registrar, Assistant Registrar, Controller of Examinations, System Analysts, Finance Officers and Account Officers.-

(1)

The Board shall have the Registrar who shall be appointed by the Government.

(2)

The Registrar shall, subject to the control of the Chairman, be the Executive Officer of the Board, and all other officers and servants, for the time being, serving under the Board shall be subordinate to him.

(3)

The Registrar shall be entitled to be present at the meetings of the Board and shall be Member-Secretary of the Board.

(4)

The Registrar shall exercise such other powers and perform such other duties as may be made by the regulations.

(5)

The Government shall appoint the required number of nursing and Paramedical Education staff such as Joint Registrar, Deputy Registrar and Assistant Registrar, Controller of Examinations, System Analysts, Finance Officers and Accounts Officers for the Board on the recommendation of the Board.

(6)

A Joint Registrar, Deputy Registrar and Assistant Registrar, Controller of Examinations, System Analysts, Finance Officers and Account Officers shall exercise such powers and perform such duties of the Registrar as are, respectively assigned to them by the Registrar under the general or special orders.

(7)

The Registrar, Joint Registrar, Deputy Registrar and Assistant Registrar, Controller of Examination, System Analysts, Finance Officers and Accounts Officers appointed under this Act shall be the servants of the State Government and the salaries and allowances and other conditions of service of these officers shall be such as may be determined by the Government.

22.

Other officers and servants of Board.-

(1)

The Board may, with the approval of the Government, appoint such other officers and servants as it considers necessary for the efficient performance of its functions under this Act.

(2)

The salaries, allowances and other conditions of services of the officers and servants appointed under sub-section (1), shall be such as may be determined by the regulations.

23.

Powers and duties of Governing Council.-

Subject to the provisions of this Act, the powers and duties of the Governing Council shall be as follows, namely:-

(a)

to act on the matters referred by the Board and to approve the recommendations and decisions of the Board for implementation;

(b)

to prepare perspective development plan in consultation with teaching institutions for nurses and hospitals;

(c)

to approve matters related to staff regulations and approval thereof;

(d)

to recommend the Government to carry test audit of accounts of the Board regularly and at such intervals as the Governing Council may deem fit;

(e)

to exercise the powers related to financial matters which are referred by the Board;

(f)

to approve the budget recommended by the Board;

(g)

to give directions to the Board with respect to the implementation of various policy decisions taken by the Government, from time to time;

(h)

to approve the rules and procedures for appointment of Registrar and other employees of the Board such as their qualifications, terms and conditions of services including conduct, discipline and duties, mode of recruitment, pay scale, etc.;

(i)

to recommend the Government to conduct an enquiry in respect of any matter concerning the proper conduct, working and finance of the institutions under the Board.

24.

Powers and duties of Board.-

(1)

Subject to the provisions of this Act, the powers and duties of the Board shall be as follows, namely:--

(a)

to advise the Government on matters of policy relating to diploma level nursing and Paramedical Education in general, and on the following matters in particular, namely :--

(i)

co-ordination between National policies and State policies regarding diploma level nursing and Paramedical Education;

(ii)

co-ordination between Diploma Level Nursing and Paramedical Education;

(iii)

to maintain uniform standard of Diploma Level Nursing and Paramedical Education;

(iv)

to promote interactions between health care industries and nursing and Paramedical Education Institutions;

(b)

to lay down the guiding principles for determining syllabus and curriculum and also to prepare the detailed syllabi and curricula for Diploma Level Nursing and Paramedical Education, for all categories, such as, regular, sandwich, part-time, correspondence course, yearly, semester pattern and the like;

(c)

to prescribe and regulate standard guidelines for selection, infrastructure for nursing and Paramedical Education Institutions, requirements in respect of staff, buildings, furniture, equipments, stationary and other things required for diploma level courses;

(d)

to prescribe and develop any book as text book and reference book or to prepare or cause to be prepared any book and print or non-print material or to publish directly or in collaboration with any other agency, any kind of learning material for diploma level courses;

(e)

to prescribe the general conditions governing admission of regular candidates and ex-candidates to the examinations and to specify the conditions relating to eligibility, attendance, term-work and on the fulfilment of which a candidate shall have a right to be admitted to and appear at any such examination;

(f)

to award certificates to candidates passing the diploma final examination;

(g)

to institute and to award scholarships, fellowships, stipends, medals, prizes and other rewards and also to prescribe conditions therefor;

(h)

to receive bequests, donations and endowments from trusts and other transfers of any property, or interest therein, or right thereto;

(i)

to hold any property, interest or right referred to in clause (h) above and to manage and deal with the same;

(j)

to fix, demand and receive such fees and penalties as may be prescribed;

(k)

to call for special reports and information from the, Director of Medical Education and Research, State Nursing Superintendent or from officers of the Medical Education Department of the Government, and to call for any information from any diploma level institution recognized by the Board, to ensure maintenance and improvement in academic standard in Diploma Level Nursing and Paramedical. Education;

(l)

to recommend measures to promote physical, moral and social welfare of students in institutions recognized by the Board, and to prescribe conditions of their residence and discipline;

- (m)
to appoint the staff except the posts mentioned in sub-section (7) of section 21 as per the regulations;
- (n)
to constitute provident fund for the benefit of the officers and employees of the Board;
- (o)
to approve the annual financial statement pertaining to the Board and to recommend to the Governing Council for sanction, the annual budget;
- (p)
to inspect and supervise generally the working of the Regional Office, if any, and to inspect periodically the accounts of the regions thereof;
- (q)
to conduct statistical and other research or training programmes for the purposes of design, development, implementation and evaluation of the curriculum, teaching learning process and examination in collaboration with any agency within the State and other States in the country or outside India;
- (r)
to appoint such Committees as it may think necessary for the efficient discharge of its functions under this Act;
- (s)
to make regulations for the purpose of carrying out effectively the provisions of this Act;
- (t)
to make bye-laws relating to matters such as procedure to be followed by the Board, their committees and any other matter solely concerning the Board and their Committees that are not provided for by or under this Act and the regulations made thereunder;
- (u)
to exercise such other powers and perform such other duties as may be conferred or imposed on it by or under this Act;
- (w)
to carry out all such acts as may be necessary to achieve the objectives of this Act so as to improve, extend or expand the Diploma Level Nursing and Paramedical Education in the State and to maintain and improve standard of Diploma Level Nursing and Paramedical Education;
- (x)
to make regulations for granting affiliation, accreditation, equivalence, eligibility to institutions and reviewing or revoking affiliation or accreditation or equivalence or eligibility;
- (y)
to demand and receive such fees as may be prescribed for institutions for affiliation, accreditation, conferring autonomy or equivalence;
- (z)
to conduct the examinations of the students;
- (za)
to appoint paper-setters, examiners, moderators, supervisors and other necessary personnel for conducting examination, assessment of performance of students and for compiling and declaration of results;
- (zb)
to admit students for the examination according to the regulations;
- (zc)
to select centres within its jurisdiction for theory and practical examinations conducted by it;
- (zd)
to declare the result of the students appearing at the examinations conducted on such date or dates as may be fixed;
- (ze)
to prepare list of students according to merit;
- (zf)
to deal with cases of unfair means according to the procedure laid down;
- (zg)
to evaluate generally the performance of students and institutions in all examinations including the final examination in

diploma level courses;

(zh)

to call for any information from any diploma level institutions recognized by it to ensure maintenance of academic standard, to call for special reports, and information from the Regional Offices, if any, of nursing and Paramedical Education concerned on diploma level institution recognized by it but not maintaining the required academic standard and to recommend to the Board withdrawal of recognition in case of poor academic results and grave academic irregularities;

(zi)

to request institutions recognized by the Medical Education Department of the Government to extend their co-operation in the conduct of the examinations and to withdraw the privileges of the Board from any institution, which fails to place at its disposal the facilities required to conduct examinations after giving it a reasonable opportunity of showing cause why such orders should not be made;

(zj)

to create, own, hold or hire any property or infrastructure required for -

(i)

functioning of the Board office;

(ii)

functioning of the regional offices;

(iii)

providing residential accommodation to officers and staff of the Board; (zk) to plan and monitor academic performance;

(zl)

to propose the need-based courses, special courses for self-employment, courses for rural, deprived persons and women.

(2)

While exercising the powers and performing the duties specified under sub-section (2), the Board shall make only such provision which will result in maintaining standards above the standards laid down under the Indian Nursing Act, 1947 (XLVII of 1947), and shall not result in conflict with the standards laid down by the Indian Nursing Council under the said Indian Nursing Act and the directions issued by the Central Government regarding Paramedical Education.

25.

Powers and duties of Chairman of Board.-

(1)

It shall be the duty of the Chairman of the Board to ensure that the provisions of the Act and the regulations and bye-laws made thereunder are observed, and he shall have all powers necessary for this purpose.

(2)

In an emergency which, in the opinion of the Chairman of the Board, require that immediate action should be taken, the Chairman shall take such action as he deems necessary and shall thereafter report his action to the Board at its next meeting.

(3)

The Chairman shall exercise such powers and perform such other duties as may be prescribed.

26.

Power of Government to issue directions.-

(1)

The Government shall have the power, after considering the advice, if any, tendered by the Board, to issue to the Board such directions as it may consider necessary in regard to all or any of the matters specified in section 24. The Board shall comply with such directions.

(2)

The Government shall also have the right to address the Board with reference to anything it has conducted or done or is conducting or doing or intends to conduct or do and to communicate to the Board its views in the matter.

(3)

The Board shall report to the Government such action, if any, as it proposes to take or has taken upon the communication, and shall furnish an explanation, if it fails to take appropriate action.

(4)

If the Board does not take action within a reasonable time, to the satisfaction of the Government, the Government may, after considering any explanation furnished or representation made by the Board, issue such directions consistent with this Act as it may think fit, and the Board shall comply with such directions.

(5)

In an emergency which, in the opinion of the Government, requires that, immediate action should be taken, the Government may take such action, consistent with this Act, as it deems necessary without previous consultation with the Board and shall forthwith inform it of the action taken.

(6)

The Government may, by order in writing, specifying the reasons thereof, suspend the execution of any resolution or order of the Board and prohibit the doing of the action ordered to be done or purporting to be ordered to be done by the Board, if the Government is of the opinion that such resolution, order or act, is in excess of the powers conferred by or under this Act upon the Board.

27.

Condition of affiliation.-

(1)

The management applying for affiliation and management whose institution has been granted affiliation for a specified period, shall give and comply with the following undertaking :--

(a)

that the provisions of the Act and regulations thereunder and the standing orders and directions of the Board shall be observed,

(b)

that there shall be a separate local managing committee provided for affiliated schools or colleges,

(c)

that the number of students admitted for courses of study shall not exceed the limits prescribed by the Board and the Government, from time to time,

(d)

that there shall be suitable and adequate facilities such as buildings, laboratories, libraries, books, equipments required for teaching and research, hostels, gymnasium, as may be prescribed,

(e)

that the financial resources of the nursing and Paramedical Institutions shall be such as to make due provision for its continued maintenance and working,

(f)

that the strength and qualification of teaching and non-teaching staff of the affiliated recognized institutions and the emoluments and the terms and conditions of service of the staff of affiliated institution shall be such as may be prescribed, and which shall be sufficient to make due provision for courses of study, teaching or training or research efficiently,

(g)

that all teaching and non-teaching employees and the required facilities of the institution to be affiliated, shall be made available by the institutions for conducting examinations and for promoting other activities of the Board,

(h)

that the directions and orders issued by the Chairman and other officers of the Board in exercise of the powers conferred on them under the provisions of the Act and the regulations shall be complied with,

(i)

that there shall be no change or transfer of the management without previous permission of the Board,

(j)

that institution shall not be closed without prior permission of the Government.

(2)

No institution which is a part of another Board shall be considered for affiliation unless a "no objection certificate" is given by the parent Board.

28.

Procedure for permission.-

(1)

The Board shall grant permission to start new nursing and Paramedical Institution by observing the standards laid down under the Indian Nursing Act, 1947 (XLVII of 1947) and the directions issued by the Central Government regarding Paramedical Education as per the provisions specified under this section.

(2)

The management seeking permission to open a new institution shall apply in the prescribed form to the Member-Secretary of the Board before the last day of the year preceding the year for which the permission is sought.

(3)

The Board shall conduct an inspection after receipt of payment of inspection fee within prescribed time and submit its report to the State Government.

(4)

All such applications received within the aforesaid prescribed time-limit shall be scrutinized by the Board and be forwarded to the Government on or before the last day of December of the year.

(5)

Out of the applications recommended by the Board, the Government may grant permission to such institutions as it may consider right and proper in its absolute discretion, taking into account the Government's budgetary resources, the suitability of the managements seeking permission to open new institutions and the State level priorities with regard to location of institutions for nursing and Paramedical Education:

Provided that, in exceptional cases and for the reasons to be recorded in writing, any application not recommended by the Board may be approved by the Government for starting a new institution of nursing and Paramedical Education.

(6)

No application shall be entertained directly through the Government for the grant of permission for opening new institution of nursing and Paramedical Education.

29.

Procedure for affiliation.-

(1)

On receipt of the permission from the Government under section 28, the Board shall consider grant of first affiliation to the new institution by following the prescribed procedure given in sub-section (2) and after taking into account whether and the extent to which the stipulated conditions have been fulfilled by the institution. The decision of the Board in this regard shall be final.

(2)

For the purpose of considering the application for the grant of affiliation, the Board shall form Committee constituted for the purpose.

(3)

The Board shall decide--

(a)

whether affiliation should be granted or rejected;

(b)

whether affiliation should be granted in whole or part;

(c)

subjects, courses of study and the number of students to be admitted;

(d)

conditions, if any, which may be stipulated while granting the affiliation.

(4)

The Member-Secretary shall communicate the decision of the Board with a copy to the Director, Medical Education and Research and if the application for affiliation is granted, alongwith an intimation regarding--

(a)

the subjects and the courses of study approved for affiliation;

(b)

the number of students to be admitted;

(c)

the conditions, if any, subject to the fulfilment of which the approval is granted.

(5)

The procedure referred to in section 28 shall apply mutatis mutandis for the permission to open new courses, additional facilities, new subjects and additional divisions.

(6)

No student shall be admitted by the institution unless the first time affiliation has been granted by the Board.

(7)

The procedure referred to in sub-sections (2) to (4) shall, mutatis mutandis, be applied for the consideration of continuation of affiliation, from time to time.

30.

Continuation of affiliation.-

The affiliated institution may apply for continuation of affiliation for the courses of study for which affiliation was granted ordinarily six months prior to the date of expiry of such affiliation. The Board shall follow the procedure specified in sections 27, 28 and 29, as far as applicable for grant of affiliation.

31.

Extension of affiliation.-

The affiliated institution may apply for affiliation for additional courses of study. The Board shall follow the procedure as specified in sections 27, 28 and 29, as far as applicable for grant of affiliation.

32.

Permanent affiliation and recognition.-

The affiliated institution with at least six years standing as an affiliated institution may apply for permanent affiliation. The Board shall consider and scrutinize the application and when satisfied that the affiliated institution has fulfilled all the conditions of application satisfactorily, and has attained high academic and administrative standards as prescribed, from time to time, the Board shall grant permanent affiliation to such institution.

33.

Inspection of institution and report.-

(1)

Every affiliated institution shall furnish such reports, returns and other particulars as the Board may require for enabling it to judge the academic standard and standards of administration of the institution.

(2)

The Chairman shall inspect every affiliated institution, at least once in every three years, by one or more Committees appointed by him in that behalf.

34.

Withdrawal of affiliation or recognition.-

(1)

If an affiliated institution fails to comply with the conditions of affiliation as provided in section 27, the Board may issue a notice to the management to show cause as to why the privileges conferred on the institution should not be withdrawn in part or in whole or modified.

(2)

The Board shall mention the grounds on which it proposes to take the above-mentioned action and shall send a copy of the notice to the Head of Institution or the Principal. It shall also specify in the notice the period which shall not be less than thirty days within which the management should file its written statement in reply to the notice.

(3)

On receipt of such written statement or an expiry of the period specified in the notice issued under sub-section (2), the Board shall take action, if any, for withdrawal or modification of such privileges.

(4)

The Board shall, having regard to the interest of students studying in the institution, recommend to the Government the action to be taken in that behalf and the Government shall, thereafter, proceed to implement the recommendations.

35.

Closure of institution.-

(1)

No management of an institution shall be allowed to close down the institution without prior permission of the Government.

(2)

The management desirous of closing down the institution shall apply to the Board on or before the last day of April of the preceding year, stating fully the grounds for closure, and giving details of the assets in the form of buildings and equipments, their original costs, the prevailing market value and the grants so far received by it from the Government or from public funding agencies.

(3)

On receipt of such an application, the Board shall cause to make enquiries as it may deem fit, to assess and determine whether the institution be permitted to effect the closure. The Board may examine whether the closure should be avoided by providing necessary assistance or taking over of the institution by the Government or transferring it to another management.

(4)

If the Board decides to recommend the closure, it shall prepare and submit to the Government, a report on the extent of damages or compensation to be recovered from the management and the assets created, utilizing the funds provided by the Government or other management and the payment of compensation to the teachers and the staff retrenched.

(5)

If the Board has recommended the closure of the affiliated institution, the Government may issue the order of closure.

(6)

If the Government decides to take over the institution or transfer the same to another management, the procedure to be followed shall be such as may be laid down, by notification in the Official Gazette, by the Government.

(7)

The procedure to effect the closure shall be in phases so as to ensure that the students already admitted to the institution are not affected, and that the first year shall be closed first and no new admissions shall be effected. The procedure to phase out the closure shall be such as may be laid down, by notification in the Official Gazette, by the Government.

36.

Application of assets of Board.-

All property, fund and other assets vesting in the Board shall be held and applied by it, subject to the provisions and for the purposes of this Act.

37.

Boards Fund, its custody and investment.-

(1)

The Board shall have its own Fund, and the following money shall be credited thereto, namely :--

(a)

fees, royalties and charges, including penalties, levied and collected by the Board;

(b)

grants, assignments, contributions and loans, if any, made to it by the Government;

(c)

bequests, donations and endowments or other contributions, if any;

(d)

interest on, and sale proceeds of, any securities vested in it;

(e)

all rents and profits from the property vested in it;

(f)

other money received by, or on behalf of, the Board.

(2)

The Board may keep in current or in deposit account with the State Bank of India or with any Scheduled Bank as defined in the Reserve Bank of India Act, 1934 (II of 1934) which holds a license issued by the Reserve Bank of India under section 22 of the Banking Regulation Act, 1949 (X of 1949), or with any other bank approved by the Government in this

behalf, such sum of money out of its Fund as may be prescribed and any money in excess of the said sum shall be invested in such manner as may be approved by the Government.

(3)

Such accounts shall be operated upon by such officers of the Board as may be authorized by it by regulations made in this behalf.

38.

General application of Fund.-

Subject to the provisions of this Act, the Fund of the Board shall be applied only to the payment of charges and expenses incidental to the matters specified in this Act and for any other purpose for which by or under this Act powers are conferred or duties are imposed upon the Board.

39.

Preparation of annual budget estimates.-

(1)

The Board shall prepare, before such date and in such manner as may be prescribed, the budget estimates of the income and expenditure of the Board for the next financial year.

(2)

The Board shall, on or after the date referred to in sub-section (1), consider the budget estimates prepared by it and submit them as approved by it to the Government, for its sanction. The Government may pass such order with reference to the budget estimates as it thinks fit, and communicate the same to the Board. The Board shall give effect to such orders.

40.

Annual accounts and audit.-

(i)

The Board shall keep accounts in such form and in such manner as may be prescribed.

(2)

The accounts of the Board shall be audited by the Auditor appointed by the Board with the previous approval of the Governing Council.

(3)

The Government may, if it thinks necessary, appoint a Special Auditor to audit the accounts of the Board.

(4)

The Auditor or the Special Auditor, as the case may be, shall submit his-report to the Board and shall forward a copy thereof to the Government.

(5)

The cost of the audit under sub-section (2) or (3), if any, shall be borne by the Board.

41.

Inspection and inquiry.-

(1)

The Government shall have the right to cause an inspection to be made, by such person or persons as it may direct, of the Board, of the buildings, hostels, laboratories, libraries and equipments of any diploma level institutions affiliated and accredited to the Board, of the teaching or other work conducted by any such nursing or Paramedical Institutions and of the conduct of any examination held on behalf of the Board; and to cause an inquiry to be made in like manner in respect of any matter connected with the Board. The Government shall, in every case, give due notice to the Board of its intention to cause an inspection or inquiry to be made, and the Board shall be entitled to appoint a representative, who shall have the right to be present and be heard at such inspection or inquiry.

(2)

The Government shall communicate to the Board its views with reference to the result of the inspection or inquiry and may, after ascertaining the opinion of the Board thereon, advise it on the action to be taken, and fix a time limit for taking such action.

(3)

The Board shall report to the Government such action, if any, as it has taken or proposes to take upon the results or the inspection or inquiry. Such report shall be submitted, with the opinion of the Board thereon, within such time as the

Government may direct.

(4)

Where the Board does not, within the time fixed, take action to the satisfaction of the Government, it may, after considering any explanation furnished or representation made by the Board, issue such directions as it may think fit, and the Board shall comply with such directions.

42.

Information, returns, etc., to be furnished by Board.-

(1)

The Board shall furnish to the Government such reports, returns and statements as may be required by the Government and such further information, relating to any matter connected with its work as the Government may call for.

(2)

The Government may, after considering any such report, return or statement or information furnished, give such directions consistent with this Act as may be necessary, and the Board shall comply with such directions.

43.

Manner of exercise of powers delegated to Committee.-

All matters relating to the exercise by the Board of powers conferred upon it by the Act, which have by regulations been delegated by the Board to a Committee, shall stand transferred to that Committee and the Board, before exercising such powers, shall receive and consider the report of that Committee with respect to the matter in question.

44.

Powers of Board to make regulations.-

(1)

The Board may make regulations with the approval of the Governing Council, for the purposes of carrying into effect the provisions of this Act.

(2)

In particular and without prejudice to the generality of the foregoing power, such regulations may provide for all or any of the following matters, namely:-

(a)

the constitution, powers and duties of the Committee appointed under section

19.

;

(b)

the subjects and curricula for the examination;

(c)

the general conditions governing the admission of regular and external candidates for the examinations and particular conditions regarding eligibility, attendance and character, on the fulfilment of which a candidate shall have a right to be admitted to and to appear at any such examination;

(d)

the marks required for passing in any subject and the examination as a whole and for exemption, credit and distinction in any subject;

(e)

the fees for admission to the examinations and other fees and charges payable in respect of other matters connected with these examinations;

(f)

the arrangements for the conduct of examinations and publication of results;

(g)

the appointment of paper-setters, examiners, moderators, supervisors and other necessary personnel for conducting examinations, their powers and duties in relation to the examination and their remuneration and mode of payment;

(h)

the qualifications and disqualifications of paper-setters, examiners, moderators, supervisors and other necessary personnel for conducting examinations;

(i)

the award of certificates;

(j)

the appointment of officers and servants of the Board and the conditions of their service;

(k)

the constitution of provident fund for the benefit of the said officers and servants of the Board;

(l)

the control, administration, safe custody and management in all respects of the finances of the Board;

(m)

the date before which and the manner in which the Board shall prepare its budget estimates;

(n)

the compensatory allowance which may be drawn by members of the Board and the Committee appointed by them;

(o)

appointment of officers and staff from Government to aided and unaided institutions for smooth conduct of examination;

(p)

any other matter which is to be or may be prescribed under this Act.

(3)

No regulations made under this section shall have effect until the same have been sanctioned by the Government and published by the Board in the Official Gazette.

45.

First regulations.-

(1)

Notwithstanding anything contained in section 44, the first regulations shall be made by the Government and published in the Official Gazette, and they shall continue to be in force until new regulations are duly made and sanctioned under the said section.

(2)

If it shall at any time appear to the Government that, it is expedient to make any new regulations in respect of any of the matters referred to in section 44 or that any regulations referred to in sub-section (1) or made by the Board under section 44 need to be modified or repealed, either wholly or in part, the Government may, after consultation with the Board and by notification in the Official Gazette, make such regulations; or modify or repeal any such regulations, either in whole or in part. The regulations so made, modified or repealed shall take effect from such date as the Government may in such notification specify or if no such date is specified, from the date of publication of the said notification in the Official Gazette, except as respects anything done or omitted to be done before such date.

46.

Power of Board to make bye-laws.-

(1)

The Board may make bye-laws consistent with this Act and the regulations made thereunder to provide for all or any of the following matters, namely:-

(a)

the procedure to be followed at the meetings of the Board and the Committees appointed by it and the number of members required to form a quorum at such meetings;

(b)

any other matter solely concerning the Board and their Committees not provided for by this Act and the regulations made thereunder.

(2)

The bye-laws made under sub-section (1) shall be published by the Board in the Official Gazette.

47.

Interpretation in case of doubt.-

If any question arises regarding the interpretation of any provisions of this Act or of any regulations or bye-laws made thereunder, the matter may be referred for decision to the Government and shall be so referred to the Government, if not less than three members of a Board so require. The decision of the Government thereon shall be final.

48.

Duties of and assistance from nursing diploma level institutions.-

All affiliated and autonomous diploma level institutions shall render such help and assist the Board as the Board may require to perform and discharge its duties and functions under the Act.

49.

Protection of action taken in good faith.-

No suit, prosecution or other legal proceedings shall lie against the Government, the Governing Council, the Board or the members or any officer or servant of the Government or of the Governing Council or of the Board for anything which is in good faith done or purported or intended to be done in pursuance of this Act or any regulations or bye-laws.

50.

Members, officers and employees of Board to be public servants

All members, officers and employees of the Board shall, when acting or purporting to act in pursuance of any of the provisions of this Act, be deemed to be public servants within the meaning of section 21 of the Indian Penal Code (XLV of 1860).

51.

Amendment of Maharashtra XL of 1966

The Maharashtra Nurses Act, 1966 (Mah. XL of 1966), shall, with effect from the appointed day, stand amended to the extent and in the manner specified in the Schedule II appended to this Act.

52.

Saving

(a)

Every Committee of the Maharashtra Nursing Council, constituted under section 11 of the Maharashtra Nurses Act, 1966 (Mah. XL of 1966) as may be necessary for the purposes of this Act, shall, as soon as practicable, but within a period of six months from the date of commencement of this Act, be reconstituted in accordance with the provisions of this Act.

(b)

The Registrar, Joint Registrar, Deputy Registrar and Assistant Registrar, Controller of Examinations, System Analysts, Finance Officers and Accounts Officer, and any other employee of the said Council immediately before the appointed day shall continue to hold the said office till they are appointed by the Government as per the provisions of this Act.

(c)

All institutions affiliated to the said Council immediately before the appointed day shall be deemed to be affiliated to the Board under this Act till their affiliation is withdrawn or reconsidered under the provisions of this Act.

(d)

All the institutions recognized and admitted to the privileges of the Council immediately before the appointed day shall be deemed to be recognized and admitted to the privileges of the Board established under this Act, save in so far such recognition or privilege may be withdrawn, restricted or modified by or under the provisions of this Act.

(e)

All benefactions accepted or received by the said Council, relating to the objects and purposes of this Act, and held by it immediately before the appointed day shall be deemed to have been accepted, received or held by the Board under this Act and all the conditions on which such benefactions were accepted, received or held shall be deemed to be valid under this Act, notwithstanding that such conditions may be inconsistent with any of the provisions of this Act.

(f)

All debts, liabilities and obligations, relating to the objects and purposes of this Act, incurred before the appointed day and lawfully subsisting against the said Council for or in connection with the purposes of the Board shall be discharged and satisfied by the Board.

(g)

Any will, deed or other document made before the appointed day which contains any bequest, gift, terms or trust in favour of the said Council for or in connection with the purposes of the Board, shall, on and from the commencement of this Act, be construed as if the Board is named therein instead of the said Council.

(h)

All references to the said Council in any enactment, or other instruments, issued under any enactment immediately before the appointed day, having reference as to the objects and purposes of the Board under this Act, shall be

construed as references to the Board constituted under this Act.

(i)

The appointment of paper-setters, examiners, moderators, supervisors and other personnels validly made under the orders and subsisting immediately before the appointed day shall be deemed to have been made under and for the purposes of this Act, and such functionaries shall continue to hold office and discharge their duties and functions until fresh appointments are made under this Act.

(j)

The service regulations applicable to the officers and servants of the Board immediately before the appointed day shall be deemed to have been prescribed under this Act and shall, save as otherwise provided by or under this Act, continue to remain in force, until they are superseded or modified in accordance with the provisions of this Act.

(k)

All notices and orders made or issued by any authority and orders or circulars of the said Council immediately before the appointed day for or in connection with the purposes of the Board shall, in so far as they are not inconsistent with the provisions of this Act, continue to be in force and be deemed to have been made or issued under this Act, until they are superseded or modified in accordance with the provisions of this Act.

53.

Power to remove difficulties

(1)

If any difficulty arises in giving effect to the provisions of this Act, the Government may, as occasion requires but not later than two years from the appointed day, by order published in the Official Gazette, do anything, not inconsistent with the objects and purposes of this Act, which appears to it to be necessary or expedient for removing the difficulty.\

(2)

Every order made under sub-section (i) shall be laid, as soon as may be, after it is made, before each House of the State Legislature.

[See section 2(m)]

Sr. No.

Name of the Region

Area comprised in the Region

1

Marathwada

Districts of Aurangabad, Beed, Hingoli, Jalana, Latur, Nanded, Parbhani and Usmanabad.

2

Vidharbha

Districts of Akola, Amravati, Bhandara, Buldhana, Chandrapur, Gadchiroli, Gondia, Nagpur, Wardha, Washim and Yavatmal.

3

Rest of Maharashtra

Districts of Ahmednagar, Dhule, Jalgaon, Kolhapur, Mumbai, Nandurbar, Nashik, Pune, Raigad, Ratnagiri, Sangli, Satara, Sindhudurg and Solapur.

(See section 51)

In the Maharashtra Nurses Act, 1966 (Mah. XL of 1966),--

(a)

in section 2,--

(i)

in clause (a), after the words "the by-laws", the following shall be added, namely:--

"or, as the case may be, affiliated to the Maharashtra State Board of Nursing and Paramedical Education in accordance with the provisions of the Maharashtra State Board of Nursing and Paramedical Education Act, 2013 (Mah. XXIII of 2013) and the bye-laws made thereunder";

(ii)

clause (e) shall be deleted;

(iii)

in clause (o), after the words "the by-laws", the following shall be added, namely:--

"or, as the case may be, recognized by the Maharashtra State Board of Nursing and Paramedical Education in accordance with the provisions of the Maharashtra State Board of Nursing and Paramedical Education Act, 2013 (Mah. XXIII of 2013) and the bye-laws made thereunder";

(iv)

in clause (p), the word "five" shall be deleted;

(b)

in section 3, in sub-section (3), in clause (b),--

(i)

for sub-clause (i), the following shall be substituted, namely:--

"(i) one member, from each of the three Regions, to be elected by the nurses registered in the Register under the relevant Region, from amongst themselves;";

(ii)

sub-clause (ii) shall be deleted;

(iii)

for sub-clause (iii), the following shall be substituted, namely :--

"(iii) one member, to be elected by matrons of the affiliated institutions, from amongst themselves;";

(iv)

for sub-clause (iv), the following shall be substituted, namely :--

"(iv) one member, from each of the three Regions, to be elected by the sister tutors and clinical instructors of the affiliated institutions, from amongst themselves;";

(v)

for sub-clause (vii), the following shall be substituted, namely :--

"(vii) one member, to be elected by the Heads (Principals) of recognized colleges or schools of Nursing including Institutions of Nursing Education in the Maharashtra, from amongst themselves;";

(c)

in section 10, clauses (e), (f), (g), (h), (i), (j), (k) and (l) shall be deleted;

(d)

section 12 shall be deleted;

(e)

in section 13, the words " the Examination Board and of" shall be deleted;

(f)

in section 14, in sub-section (2), clause (c) shall be deleted;

(g)

in section 15, in sub-section (6"), the words "and of the Examination Board" shall be deleted;

(h)

the Heading "CHAPTER IV-RECOGNITION OF TRAINING INSTITUTIONS AND AFFILIATION OF INSTITUTIONS", and sections 25 and 26, shall be deleted;

(i)

in section 38, in sub-section (2), clause (e) shall be deleted;

(j)

in section 39, for sub-section (1), the following sub-section shall be substituted, namely:--

"(1) The Council may, with the previous sanction of the State Government, make by-laws, not inconsistent with the provisions of this Act or the rules made thereunder, for such matters as may be necessary for the exercise of the powers and performance of duties and functions by the Council under this Act.";

(k)

for the SCHEDULE, the following shall be substituted, namely:-

"SCHEDULE

[See clause (p) of section 2]

Sr. No.

Name of the Region

Area comprised in the Region

-1

-2

-3

1

Marathwada

Districts of Aurangabad, Beed, Hingoli, Jalana, Latur, Nanded, Parbhani and Usmanabad.

2

Vidharbha

Districts of Akola, Amravati, Bhandara, Buldhana, Chandrapur, Gadchiroli, Gondia, Nagpur, Wardha, Washim and Yavatmal.

3

Rest of Maharashtra

Districts of Ahmednagar, Dhule, Jalgaon, Kolhapur, Mumbai, Nandurbar, Nashik, Pune, Raigad, Ratnagiri, Sangli, Satara, Sindhudurg and Solapur.

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